

Case 3:18-cv-01466-MCR-MJF Document 79 Filed 06/14/19 Page 1 of 7

2018 CA 000543

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

PAM CHILDERS
CLERK & COMPTROLLER
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ESCAMBIA COUNTY, FL

DEEPGULF, INC.
TOKE OIL AND GAS S.A.,
Plaintiffs,

vs.

MARC M. MOSZKOWSKI ,
Defendant.

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CASE NO. 3:18-cv-01466-MCR-MJF

MEMORANDUM IN SUPPORT OF
DEFENDANT'S RENEWED MOTION
FOR PROTECTIVE ORDER

COMES NOW Defendant, Marc M. Moszkowski, by and through undersigned Counsel, and files this Memorandum in Support of its Renewed Motion for Protective Order and states as follows:

PROCEDURAL BACKGROUND

On 29 March 2019, the parties filed a Joint Motion to Extend Dates in Final Scheduling Order wherein Defendant agreed to appear personally for deposition and mediation "absent unforeseen circumstances, on or before 30 July 2019." At that time, Defendant was willing and able to travel to the United States for deposition and mediation in the above referenced matter.

Case 3:18-cv-01466-MCR-MJF Document 79 Filed 06/14/19 Page 2 of 7

On 4 April 2019, this Court entered an Order requiring Defendant to appear in person for deposition in the Northern District of Florida on or before July 30, 2019.

Since the entry of this Court's 4 April 2019 Order, Defendant has developed a severe medical condition which requires surgery. (See surgeon referral, attached hereto as Exhibit "A").¹ Defendant's medical condition prohibits travel to the United States until after he has recovered from surgery, which is estimated to be late October-early November 2019 due to the nature and limitations of the French Healthcare System.² (See physician certification stating that travel is not advised, attached hereto as Exhibit "B").³

¹ English translation of Exhibit "A":
May 15, 2019

Dear colleague (surgeon),
Please have Mr. Marc MOSZKOWSKI, 65 years old, without particular preexisting condition, examined for two voluminous inguinal hernias, which are painful and reducible.
No medical treatment currently.

Confraternally yours,
[Signature]

² Defendant has a confirmed appointment for pre-surgery evaluation with Dr. Mazarguil at Institut Arnaud Tzanck on Wednesday, October 2nd, at 5 PM. The operation is to be undertaken approximately three weeks later, around October 23rd followed by a two week recovery period.

³ English translation of Exhibit "B":
May 15, 2019

I, the undersigned, CHILLI Christian, doctor of medicine, certify that, given Mr. Marc Moszkowski's current state of health, an extended flight of several hours is ill advised.

Done in Chateaudouble,
[Signature]

Case 3:18-cv-01466-MCR-MJF Document 79 Filed 06/14/19 Page 3 of 7

On 6 June 2019, Plaintiffs noticed Defendant's Deposition for 17 July 2019, at 9:00 a.m. in Pensacola, Florida. (See Notice of Deposition of Marc M. Moszkowski, attached hereto as Exhibit "C"). Additionally, mediation is tentatively set for 19 July 2019. Defendant is unable to attend deposition or mediation in person and would request that this Court enter an Order protecting him from the same. Defendant would request that this Court permit deposition by videoconference and mediation by teleconference based upon good cause shown due to unforeseen circumstances.

ARGUMENT

This Court, in its own Order of 30 January 2019 (Document 42), stated:

The parties should also discuss- in their conference and in any subsequent submission on this issue- the feasibility of alternatives to an "in person" deposition. See Fed. R. Civ. P. 30(b)(4). Courts have noted that, in some cases, a "telephone interview, or better, a video-recorded conference call, would be an acceptable substitute...." See *Newman v. Metro. Pier & Exposition Auth.*, 962 F.2d 589,591-92 (7th Cir. 1992); *Abdel-Ghaffar v. Illinios Tool Woks, Inc.*, 706 F. App'x 871, 876 (7th Cir. 2017)("Federal Rule of Civil Procedure 30(b)(4) allows depositions by 'remote means' either on the stipulation of the parties, or on motion.")...Although an "in person" deposition is generally superior to these alternatives, in certain cases these alternatives may be necessary.

Id.

The Court in *Shockey v. Huhtamaki, Inc.*, 280 F.R.D. 598 (D. Kan. 2012) spoke to this issue, stating:

Fed. R. Civ. P. 30(b)(4) provides that “[t]he parties may stipulate – or the court may on motion order – that a deposition be taken by telephone or other remote means.” Rule 30(b)(4) thus clearly permits the taking of depositions by telephone or “other remote means,” which the Court construes to include depositions by videoconference. (*See* Manual for Complex Litigation (Fourth) § 11.452 (2004))

The Court recognizes that allowing depositions be taken by telephone, particularly depositions of parties, deprives the opposing party of the opportunity to evaluate the deponent’s nonverbal responses and demeanor. It also denies the opportunity for face-to-face confrontation of the party being deposed. Telephone depositions may also make it more difficult when the testimony requires the deponent to examine numerous, lengthy, or complex documents. These disadvantages of telephonic depositions, however, do not apply at all, or to the same degree, when the depositions are to be taken via videoconference. Taking the depositions via videoconferencing, as proposed by Plaintiffs here, addresses Defendant’s objection that the deponent’s nonverbal responses and demeanor cannot be observed. The Northern District of California has recently encouraged the use of depositions via videoconference. In *Gee v. Suntrust Mortgage*, the court noted that “[p]arties routinely conduct depositions via videoconference, and courts encourage the same, because doing so minimizes travel costs and ‘permits the jury to make credibility evaluations not available when a transcript is read by another.’” (2011 WL 5597124, at *2) Defendant argues that Plaintiffs must make a showing of “extreme hardship” necessary to order that their depositions be taken by telephone as required by *Williams v. Sprint/United Management Co.* (2006 WL 1867471, at *3) The Court finds that Defendant overstates the required showing that Plaintiffs must make in this regard. Under Rule 26(c), Plaintiffs must show good cause for the requested protective order.

Id., see also Fed. R. Civ. P. 26(c)(1)(B) (the court may, for good cause, issue a protective order "specifying terms, including time and place, for the disclosure or discovery").

It is well understood that "the deposition of a corporation by its agents and officers should ordinarily be taken at its principal place of business. This customary treatment is subject to modification, however, when justice requires." *Wright, Miller, Kane, Marcus & Steinman*, Federal Practice and Procedure: Civil 2d, § 2112 (2015 rev.). Here, Defendant would assert that justice requires the granting of a Protective Order allowing deposition by video-conference and mediation by teleconference. "A protective order should be granted when the moving party establishes 'good cause' for the order and 'justice requires [a protective order] to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense. . . ." Fed. R. Civ. P. 26(c). "For good cause to exist, the party seeking protection bears the burden of showing specific prejudice or harm will result if no protective order is granted." *Cadent Ltd. v. 3M Unitek Corp.*, 232 F.R.D. 625, 629 (C.D. Cal. 2005)(quoting *Phillips v. General Motors Corp.*, 307 F.3d 1206, 1210-11 (9th Cir. 2002); *Beckman Indus., Inc. v. Int'l Ins. Co.*, 966 F.2d 470, 476 (9th Cir.), cert. denied, 506 U.S. 868 (1992)). Defendant would assert that good cause has been

established, as Defendant would suffer harm if required to travel to the United States under his current medical condition.

Defendant believes a Protective Order allowing him to attend deposition via videoconference and mediation via telephonic conference would be beneficial to all parties, in allowing this matter to proceed without any further delay.

Respectfully submitted this 14th day of June 2019.

s/ Mary Allie E. Boller

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CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(B)

I CERTIFY that I personally communicated with the opposing party regarding the relief sought herein.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Memorandum contains 1148 words, exclusive of the case style, signature block and certificates of compliance/service.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

CERTIFICATE OF SERVICE

I hereby certify that on this 14th day of June 2019, the foregoing was electronically filed with the Clerk of the Court using the CM/ECF system which will send notification of such filing to all counsel of record.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER